

Civil Code §3294. “Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” *Grieves v. Superior Court* (1984) 157 Cal.App.3d. 159, 166. Here, the Court finds that there are insufficient allegations of oppression, fraud, or malice and therefore the claim for punitive damages is inappropriate. Additionally, as to the allegations of corporate ratification, the Court likewise finds those allegations lacking and the Motion to Strike is granted in its entirety. Leave to amend is granted. Any amended Complaint is to be filed and served within 20 days’ notice of this order. The Court will utilize the form of order submitted by Defendant with modification to Paragraph 4 to indicate that leave to amend is granted.

4-6. 23CV02667 PARRISH SCARBROUGH, MELISSA V. LALLY, KULWINDER ET AL

- EVENTS: (1) Plaintiff Melissa Parrish Scarbrough’s Motion to Compel Deposition of Defendant Harry Hawinder and Request for Monetary Sanctions in the Amount of \$2,146.00 Against Defendant Harry Hawinder and his Counsel, and evidence, Issue and Terminating Sanctions*
- (2) Plaintiff Melissa Parrish Scarbrough’s Motion to Compel Deposition of Defendant Kuldeep Lally and Request for Monetary Sanctions in the Amount of \$1,794.00 Against Defendant Kuldeep Lally and his Counsel, and evidence, Issue and Terminating Sanctions*
- (3) Plaintiff Melissa Parrish Scarbrough’s Motion to Compel Deposition of Defendant Kulwinder Lally and Request for Monetary Sanctions in the Amount of \$1,794.00 Against Defendant Kulwinder Lally and his Counsel, and evidence, Issue and Terminating Sanctions*

As an initial matter, pursuant to *Code of Civil Procedure* §1005(b), any opposition to the pending motions were to be filed and served no later than June 17, 2026 [9 Court days before the hearing]. Here, Defendants’ Opposition to Plaintiff’s Motion to Compel Depositions and Request for Monetary, Issue, Evidence, and Terminating Sanctions was not filed and served until June 24, 2026. There is no explanation as to why the Opposition was filed untimely and the Court has declined to consider the arguments therein. The Court finds that there has now been a showing of ongoing and willful disobedience of this Court’s discovery orders and blatant and ongoing abuse of the discovery process that rises to the level of discovery abuse to support terminating sanctions. See, *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093. As such, terminating sanctions are warranted on this record, the Motions are granted, and Defendants’ General Denial filed on March 11, 2026 is hereby stricken. The Court will sign the forms of order submitted by Plaintiff. Given the Court’s ruling, the Court will hear from Plaintiff’s counsel regarding the upcoming hearing on Plaintiff’s Motion for Summary Adjudication. However, this is not an invitation to present oral argument in regard to Plaintiff’s Motions. If the parties wish to argue the tentative ruling, they must comply with Butte County Local Rule 2.9 and California Rules of Court Rule 3.1308(a)(1).

7-8. 23CV03195 GARCIA, ALBERTO V. FIRESTORM WILDLAND FIRE SUPPRESSION, INC

EVENTS: (1) Plaintiff's Motion for Leave to Amend Complaint to Substitute Class Representative

(2) Order to Show Cause Why Case Should Not be Dismissed in Light of Former Plaintiff Alberto Garcia's Death

Plaintiff's Motion for Leave to Amend Complaint to Substitute Class Representative is granted. The Court grants leave to amend the class claims to include Plaintiff Devin Baxter and stays the PAGA claim to permit Plaintiff to conduct discovery and identify a qualified PAGA representative to be added by further amendment. The Court sets this matter for a status hearing on September 30, 2026 at 10:30 a.m. for status of the PAGA claim. The Court vacates the Order to Show Cause Why Case Should Not be Dismissed in Light of Former Plaintiff Alberto Garcia's Death in light of the above. The Court also advances the Case Management Conference on July 1, 2026 at 10:30 a.m. to 9:00 a.m. and continues the Case Management Conference to September 30, 2026 at 10:30 a.m. Case Management Statements are to be timely filed and served.

9. 24CV02467 DOE, JANE V. CHICO UNIFIED SCHOOL DISTRICT

EVENT: Defendant Chico Unified School District's Motion to Compel Further Discovery Responses and Request for Monetary Sanctions

Defendant Chico Unified School District's ("Defendant" herein) Motion to Compel Further Discovery Responses and Request for Monetary Sanctions is granted. Plaintiff Jane Doe ("Plaintiff" herein) shall serve code-compliant verified supplemental responses to Defendant's Supplemental Interrogatories (Set One) Defendant's Supplemental Request for Production of Documents (Set One) within twenty calendar days of service of notice of this Order. Monetary sanctions in the amount of \$3,000 are awarded in favor of Defendant and against Plaintiff and their counsel of record Mary E. Alexander, Mary Alexander & Associates, P.C., which are to be paid within thirty days' notice of this order. The Court will utilize the form of order submitted by counsel with modifications as noted herein.

10. 24CV02857 PLATTS, TOBIAS II ET AL V. JOHNSON, MARK ET AL

EVENT: Defendants' Motion to Compel Further Responses to Requests for Admissions, Set One, and Form Interrogatories, Set One, Request for Monetary, Evidentiary, and Terminating Sanctions

Defendants' Motion to Compel Further Responses to Requests for Admissions, Set One, and Form Interrogatories, Set One, Request for Monetary, Evidentiary, and Terminating Sanctions is granted in part as follows: